

AI 輸出的標示— 怎麼標得好、標得合理？

v.20260827

群牧開源管理顧問有限公司 / 鈞理知識產權事務所 法制顧問

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2026 國科會 工程領域女性學者研討會 大會座談：AI 輔助計畫的利與弊—怎麼用得好、用得合理

2026.09.03

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經歷：

- 1、協助編撰《政府資料開放授權條款》與《臺灣主權 AI 語料授權條款》作為資料流通與公私協力基礎建設之一環。
- 2、行政院、國發會、文化部、故宮博物院、考試院、銓敘部政府資料開放諮詢小組會議委員
- 3、臺北市政府公共參與組市政顧問

<http://tw.linkedin.com/in/lucienchlin>

01 | AI 輔助的利與弊——

以開源軟體為觀察對象

Home > Linux 35th Anniversary

Linux 35th Anniversary



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Photo Frame

1991

Fun Facts

Share



Everything you need to celebrate #Linux35

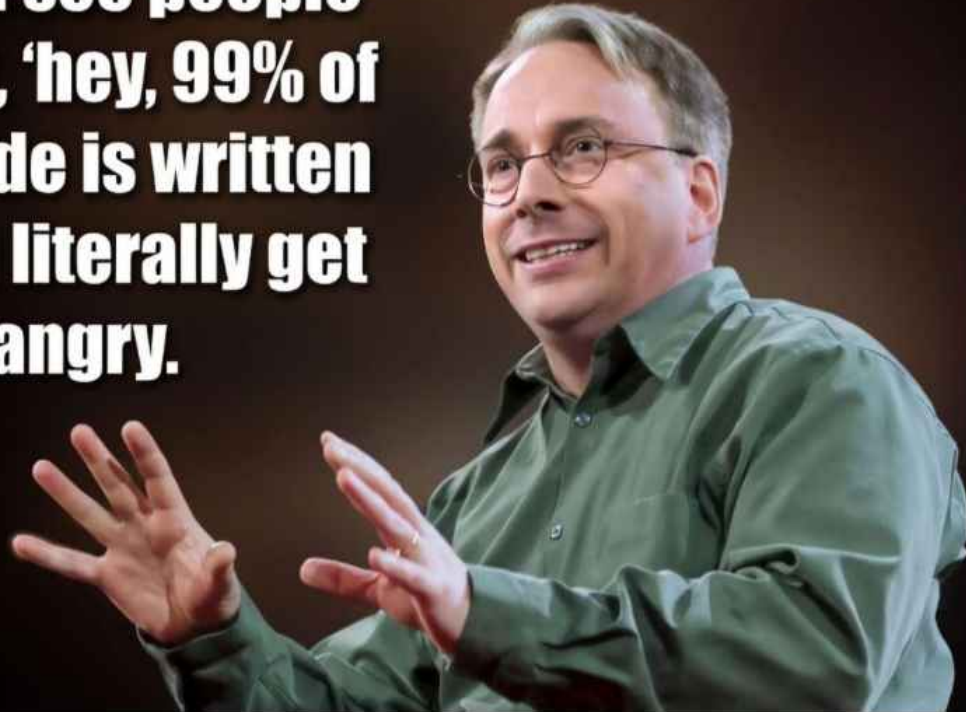
"I'm doing a (free) operating system (just a hobby, won't be big and professional like gnu)..."

— Linus Torvalds, Usenet, August 25, 1991

Copyright © 2026 The Linux Foundation®. All rights reserved.
Save these Linux35 graphics and share them wherever you post about #Linux35.

<https://www.linux.com/linux35th/>

**AI is a great tool,
but it's a tool, and
when I see people
saying, 'hey, 99% of
our code is written
by AI. I literally get
angry.'**



Torvalds shared his views a few months back. Lot has changed since then

<https://itsfoss.com/news/torvalds-used-ai-fix-kernel-bug/>

And no, that's not the position of the Linux kernel.

I realize that some people really dislike AI, but this is an area where I'm willing to absolutely put my foot down as the top-level maintainer.

Linux is not one of those anti-AI projects, and if somebody has issues with that, they can do the open-source thing and fork it.

Or just walk away.

AI is a tool, just like other tools we use. And it's clearly a useful one.

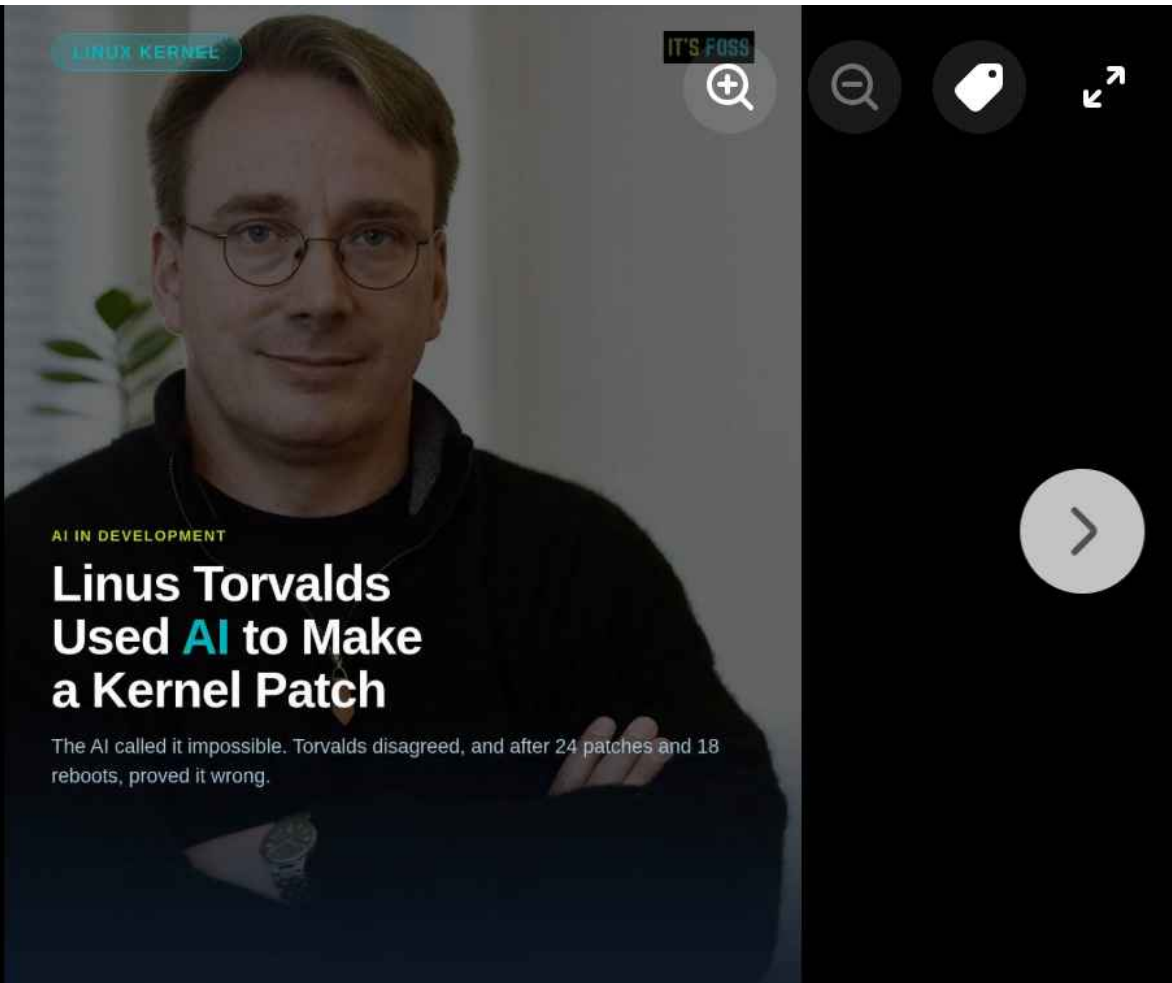
It may not have been that "clearly" even just a year ago, but it's no longer in question today.

There are other questions around AI (like what the economy of it will actually look like in the end), but "is it useful" is no longer one of those questions. Anybody who doubts that clearly hasn't actually used it.

Yes, it can also be a somewhat painful tool, both for maintainer workloads and just from a "it keeps finding embarrassing bugs" standpoint.

But the solution is not to put your head in the sand and sing "La La La I can't hear you" at the top of your voice like some people seem

https://lore.kernel.org/linux-media/CAHk-%3Dwi4zC%2BZe8e%2Bp3tMv8TtG_80KzsZ1syL9anBtmEh5Z40vg%40mail.gmail.com/



It's FOSS

8月22日上午10:04 · 地球

Linus Torvalds just used AI to help fix a Linux kernel bug. And this is a rare event.

Rare because Torvalds doesn't code on Linux kernel anymore. He just reviews code and merge pull requests from contributors.

So this is a rare occasion in recent time where he made a kernel patch himself. And he took assistance of AI this time.

The bug was in the Intel Xe graphics driver for Battlemage G21 cards. It caused GDM, the display manager, to restart endlessly. Tracking it down r..... 查看更多

<https://www.facebook.com/itsfoss/photos/1353924216848628/>

綜整開源領域的 AI 輔助：

不是全好、或全壞

而是必須佐以適當的管理或規則

掌握與維護人類的核心能力

來盡量讓相關事務有理有據

(精華) 手排v.s自排? 考駕照的萬年老問題 老司機揭露優缺點 | 尚恩帶你上...

youtube.com 已進入全螢幕模式 離開全螢幕模式 (Esc)



手排v.s自排? 考駕照的萬年問題

老司機揭露優缺點



0:00 / 8:31



<https://www.youtube.com/watch?v=vGxpFgHo1uo>

02 | AI 輸出的標示——

從比較政策看一般法制原則

並不是說標示能解決所有問題、但或許是著手處理的前提要件

(1) EU AI ACT 的避免誤會

Article 50 2026.8.2 正式上路

Transparency obligations under Article 50 of the AI Act

This page provides answers to frequently asked questions related to concepts and obligations clarified in the Commission Guidelines on Article 50 of the AI Act.

Who is a provider of an AI system and what transparency obligations apply to them?



Who is a deployer and what transparency obligations apply to them?



When do providers of AI systems have to inform people they are interacting with an AI system?



What content needs to be labelled as AI-generated or manipulated?

The icons are intended to help natural persons exposed to such content to recognise, in a clear and distinguishable manner, that the content has been artificially generated or manipulated. This obligation supports public trust, reduces the risk of misinformation and the informed viewing and reading by natural persons of all sorts of content.

Not all AI-generated or manipulated content needs to be labelled. The disclosure requirement under the AI Act covers only AI-generated or manipulated content. The icons support compliance with Article 50(4) of the AI Act, which requires deployers of AI systems to disclose:

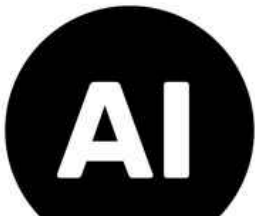
- **Deep fakes** - AI-generated or manipulated image, audio, or video content that resembles existing persons, objects, places, entities or events and would falsely appear to a person to be authentic or truthful.
- **AI-generated or manipulated text** published to inform the public on matters of public interest, which did

<https://digital-strategy.ec.europa.eu/en/policies/eu-icons-labelling-ai-generated-content>

The EU icons

The Icons have 4 variations: black, white, black with 50% transparency and white with 50% transparency. You can download zip files with all the icons in all variations in [SVG](#) and [PNG](#) formats.

The icons have undergone user-testing, and the results have informed their design. Notably, performance improved across all measures when the basic icon was accompanied by a text label (e.g. modified).

Icon	When to use	Use case examples
Basic icon 	When AI was involved in the creation of deep fake content (image, audio, video) or published text or when a custom text label or interactive second layer is implemented	Deep fake video with the text label "voices generated with" followed by the basic icon

Fully AI-Generated

AI GENERATED

When the entire deep fake content (image, audio, video) or text is fully generated by AI with no human-created elements or human editorial control (apart from prompting)

Fully AI-generated deep fake videos with politicians or fictional events

Fully AI-composed music or art*

AI-generated news summaries

Partially AI-Modified

AI MODIFIED

When pre-existing, human-made content was partially modified with AI turning it into a deep fake or text on matters of public interest

A face in an authentic photograph is swapped with a face of a politician using AI

Authentic photographs of an empty apartment is furnished

Limitations and exceptions

Evidently **artistic, creative, satirical, fictional and analogous works**

Where deep fake content forms part of an evidently artistic, creative, satirical, fictional or analogous work or programme, the transparency obligations are limited to disclosure in an appropriate manner that does not hamper the display or enjoyment of the work.

Authorised by law

The disclosure obligation does not apply where the use of deepfakes or published text on matters of public interest is authorised by law to detect, prevent, investigate or prosecute criminal offences.

Human review or editorial control for text



How Claude marks

+

support.claude.com/en/articles/16266773-how-claude-marks-ai-generated-content

140%

🔍

🌐

🔍

Ctrl K

 Claude Support

API Docs

Release Notes

How to Get Support

English

Search

Claude

Pro and Max plans

Team and Enterprise plans

Identity management (SSO, JIT, SCIM)

Claude Cowork

Claude Code

Claude Desktop

Claude Mobile apps

Claude API and Console

Connectors

Claude in Chrome

Claude for Education

Privacy and legal

Safeguards

Amazon Bedrock

All Collections > Privacy and legal > How Claude marks AI-generated content

How Claude marks AI-generated content

Updated over 2 weeks ago

Copy for LLM

Anthropic has signed the EU AI Act's Article 50(2) Code of Practice on Transparency of AI-Generated Content, as a provider of both generative AI models and generative AI systems. This article describes how we're planning to put those commitments into practice, how marking works, and what its limitations are. We'll update this article and publish more detailed technical guidance as it becomes available.

Anthropic's commitments under the EU AI Act's Code of Practice on Transparency of AI-Generated Content

What our marking commitments mean for Claude:

- New models will mark AI-generated content from day one.** Claude models launched in the EU on or after August 2, 2026 will support machine-readable marking at launch. Generated text will carry embedded watermarks, and generated files will include digitally signed provenance metadata where supported.
- Marking works everywhere you use Claude.** Marks will apply to output from supported Claude models across Claude Platform (API), Claude, Claude Code, Claude Cowork, and Claude Tag, and

On this page

Machine-readable marks in Claude-generated content

What's covered

How Claude marks content

1. Embedded watermarks in text

2. Signed provenance metadata

Detecting Claude's marks

Limitations

If you build with Claude



<https://support.claude.com/en/articles/16266773-how-claude-marks-ai-generated-content>

(2) 中國大陸的風行草偃

人工智能生成合成內容標識辦法 -2025.09.01

顯式標識 + **隱式**標識

署名 (**浮水印**) + **metadata**(詮釋資料)

(3) 我國採行的風險分類

施政說明

數位發展四大主軸

強化偏鄉數位服務 ▾

對齊大會 Alignment
Assemblies ▾

數據賦能 公益創新 ▾

數位憑證皮夾

最新海纜狀況 ▾

數發部 AI 專區 ^

- 治理與評測
- 資料開放與創新
- 產業推動與算力
- 人才培育與指引

人工智慧風險分類框架

為鼓勵人工智慧發展的同時，確保技術應用的安全與可靠性，數位發展部依據《人工智慧基本法》規定，推動與國際接軌之「人工智慧風險分類框架」。本框架旨在作為政府跨部會溝通的共同語言，提供一套共通的評估標準。

一、框架定位與目的

- (一) 共通評估標準：協助各主管機關識別其管轄領域內 AI 應用的潛在風險，並檢視現有法規之充足性。
- (二) 跨部會協作：協助各目的事業主管機關訂定以風險為基礎的管理規範。
- (三) 權責分工：最終的治理執行權力與責任仍由各目的事業主管機關負責，依循此框架原則，將其轉化為具法律拘束力、可直接執行的領域管理規範。

二、四項核心操作流程

本框架引導各機關依序進行以下操作，以落實風險管理：

- (一) 盤點應用情境：掌握所管產業現有或未來可能導入的 AI 應用場景。
- (二) 識別風險：識別產業 AI 應用中潛在的風險類型。
- (三) 評估風險：針對識別出的風險類型，進一步評估該風險類型之影響程度。
- (四) 應對風險：依據判定結果強化或規劃妥適之管理作為。

三、連結

人工智慧風險分類框架 ↗

現階段 AI 產出標示的建議原則 -v.20260804

1. **應予標示**：不揭露者可能**直接違反現行法**（例如觸及刑法、選罷法、醫師法 相關法律保留事項之 deepfaking）
2. **建議標示**：涉及**風險分擔、公平原則**的其他事項
3. **不標亦可**：然標示有助於**釐清或聲明權利**

03 | 學術倫理的自律自制—

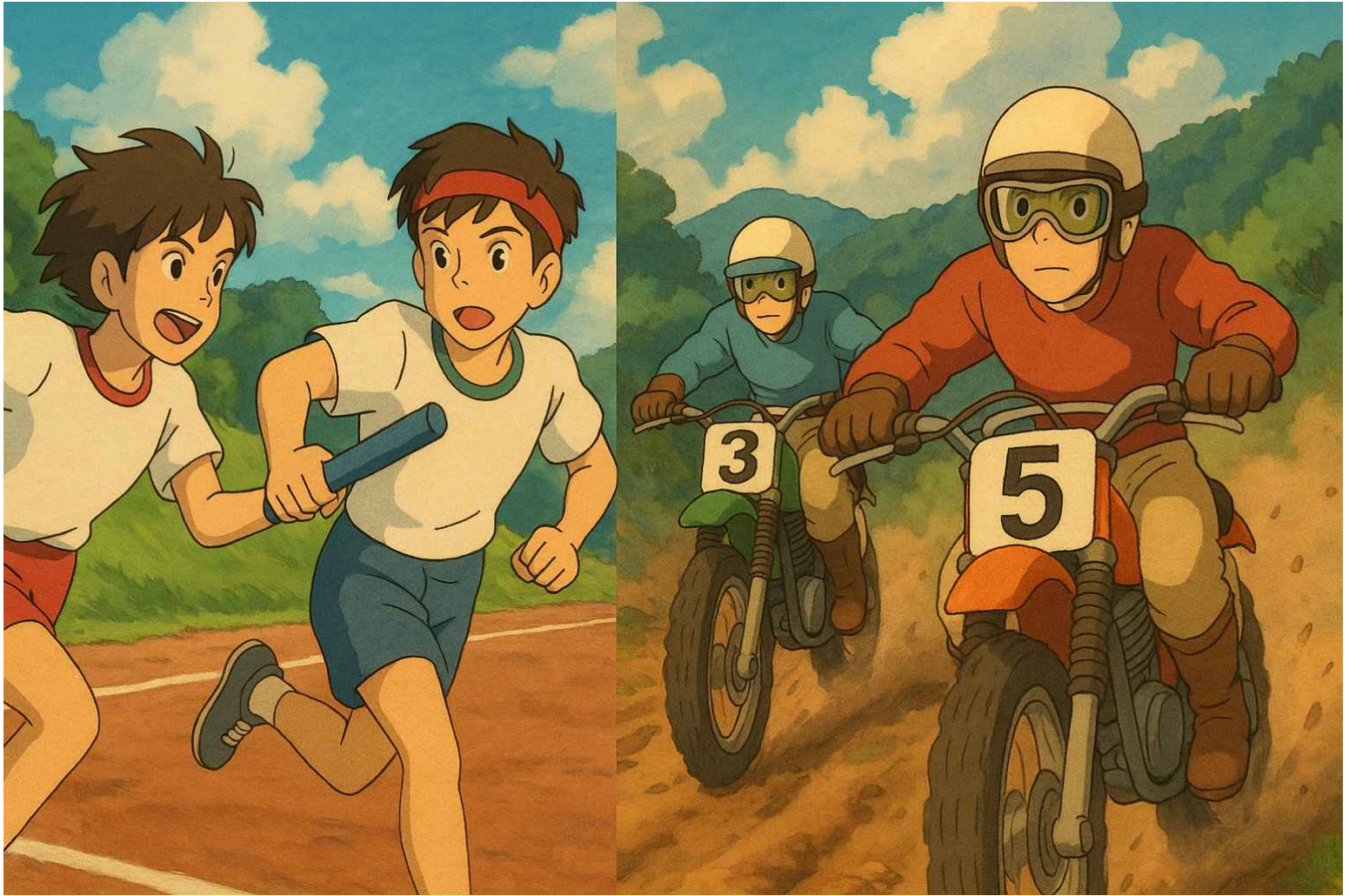
從工具漸向輔具放寬

維持公共事務的公平性

以任何合理方式為之

若把 AI 當工具、完全操作過程和結果的創作表達，那它就是工具。

然若把 AI 當輔具，則應適當披露其輔助事實以得到公平評價。



Built with ChatGPT-4o, dedicated to the public domain under CC0 1.0.

Elsevier

1. 研究過程**可**、寫作過程原則**不可**，除非僅用於提升語言或可讀性，不涉及主論點的修潤工作。
2. 錦上添花**或可**、雪中送炭**不可**，主要**結論、要點**不能仰賴 AI 生成，**圖表盡量求真求實**，除非僅用在光影、對比的微調。
3. 單純工具**可**、輔具分工**看狀況**，並應配合三項要點的**揭露與備存**，包括所使用的 AI 工具、使用方式與範圍，以及保留原始文件。

依照過去一般**通則標準**，基本上，**人類**
作者應該要先呈現**第一版**，但這樣的標
準，近期觀察已有**若干鬆動**。

AJPS AI Policy – Ame x +

← → ↺ 🏠 ajps.org/ajps-ai-policy/ 130% ☆ 🧑 📁 ☰

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AJPS AMERICAN JOURNAL of POLITICAL SCIENCE

HOME ARTICLES & NOTES REVIEWS MANUSCRIPTS DATA INTEGRITY ABOUT AJPS

AJPS AI Policy

AI Accountability and Transparency Policy for Authors

The *American Journal of Political Science* acknowledges the increasing use of artificial intelligence (AI) tools in research and writing. This policy explains how authors must detail that use in an accountable and transparent way. Authors must also comply with [Wiley's AI guidelines](#) for researchers.

Authorship and AI Oversight

Authors may use AI Technology only as a companion to all their work, including the writing process: they must retain responsibility for and oversight of all content, and must not use AI as a replacement for their own judgment. This policy means that authors must take full responsibility for the accuracy of all content, and verify that all claims, citations,

TRANSLATE

請選取語言

由「Google 翻譯」技術提供

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Enter your email address to receive notifications of new AJPS Author Summaries and posts from the editors.

Email Address

<https://ajps.org/ajps-ai-policy/>

Authorship and AI Oversight

Authors may use AI Technology only as a companion to all their work, including the writing process: they must retain responsibility for and oversight of all content, and must not use AI as a replacement for their own judgment.

AJPS-2026.08.11

1. 用 AI 就用 AI
2. 交出去的東西，全都當作作者自己寫的。
3. 說理、辯護乃至錯誤承擔，都必須由作者一力承擔。
4. 最終成果確實反映作者自己的專業、聲音與原創性。
5. 人類理解、吸收、驗證，並願意完整承接其責任。

<https://ajps.org/2026/08/11/revised-ajps-artificial-intelligence-ai-policy-for-authors-and-reviewers/>

重點不是用 **AI**

重點是用了 **AI** 沒有揭露

而又欠缺掌控相關表達與發現的能力

Human in the Loop

Human on the Loop

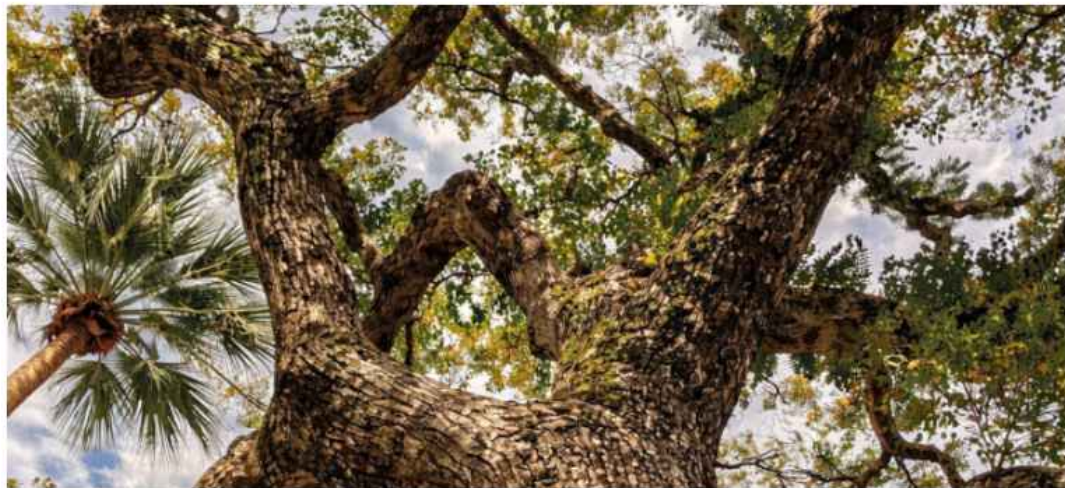
核心能力在於、考究人類就 **AI Output**

在「**表達說理**」上的「**掌控能力**」

使用 AI 工具協助輸出的作品需要特別進行標示嗎？

2026 年 4 月 1 日 | Written by Librarian017

Leave a Comment



2026 "林誠夏 Lucien C.H. Lin" @ 逢甲大學圖書館部落格, CC0, 使用AI創作 (Made with AI - ChatGPT-4.5)。

林誠夏顧問/CC Taiwan、鈞理知識產權事務所

坦白說，這取決於具體情境。隨著生成式 AI 工具愈來愈普及，大眾對於作品標示的態度，也已從早期強調 Built with AI (由 AI 生成)、Produced by AI (由 AI 產出)，逐漸出現反向標示，例如 Built without AI (未使用 AI 生成)、Produced without AI (非 AI 產出)，甚至進一步標示 100% human-created (百分之百人類創作)。不過，在甘此特定情境下，仍建議進行明確標

分類

語言學習
電子報
學術論文@線上講堂
主題專欄作家列表
主題專欄
性別平等
智慧財產權
投資 | 管理
經濟 | 統計
環境 | 永續
醫學 | 養生
易經 | 數術
書評 | 影評
行銷 | 大數據
建築 | 設計
科普 | 科技
商管 | 經營
哲學 | 文學
藝術 | 音樂
政治 | 法律
教育 | 人文
體育 | 競技
歷史 | 地理
生活 | 旅遊

Built **with AI** (由 AI 生成)

Produced **by AI** (由 AI 產出)

Facebook: 從鼓勵標示到**自動註記**



Built **without AI** (未使用 AI 生成)

Produced **without AI** (非 AI 產出)

100% human-created (百分之百人類創作)

目漸形成的實務情境（ 流程化 / 自動化 ）：

1、**AI 防偽**標示（ 沒去刪會**自動在那裡** ）： Adobe C2PA 、 OpenAI DALL · E 、 Stability AI invisible watermark ， Google Studio SynthID 。

2、**IPTC** 標籤（ 專業**領域慣例** ）： International Press Telecommunications Council 影像 EXIF/XMP 欄位標示規格。

3、**CR** 標籤（ 主動**強化權利聲明** ）： CR(Copyright) 標籤，泛指任何能標明作品的著作權利狀態及授權條款的相關資訊。

Open Source AI Definition

開源 AI 模組定義

Preferred form to make modifications

- **Data** Information
- **Code**: OSI-approved licenses
- **Parameters**: OSI-approved terms
- **AI model** & **AI weights** included

臺灣主權AI訓練語料庫(Beta版)



三、標示義務

1. 除非依法免除或經授權人另行同意，於語料資料之應用型態為模型、權重等工具或輸出平臺之產出時，被授權人應標示語料平臺，就該語料資料提供之相關識別資訊，例如資料集名稱、版本號、資料集提供者、發布年份、資料集申請頁面或官方網站、或其他經授權人指定之格式化引用資訊，以及指出係依「臺灣主權AI訓練語料授權條款-第1版 (Taiwan Sovereign AI Training Data License-Version 1.0)」發布之狀態，此一授權資訊之呈現，得標示授權條款正式全稱，例如：「「臺灣主權AI訓練語料授權條款-1.0—有效期間至2030年」、「臺灣主權AI訓練語料授權條款-1.0—有效期間為永久」、「SAITD-Lic-Taiwan-1.0-Valid until 2030」、「SAITD-Lic-Taiwan-1.0-Valid in perpetuity」。
2. 鑒於人工智慧訓練涉及多元來源之語料資料混用，授權人同意就本授權條款發布之語料資料，進行識別資訊標示時，被授權人僅需就語料平臺提供之語料資料庫或資料集名稱，及其他相關識別資訊進行標示，毋須就本授權語料資料內含個別素材，如語文、音樂、美術、攝影、圖形、視聽、錄音等客體進行逐項標示。
3. 於語料資料之應用型態為程式碼、文件等型態之輸出時，相關標示義務得視媒介或載體之限制，採更為簡化之方式為之。例如採人工智慧軟體模型或服務平臺進行輸出執行，後續輸出成果於公開演播或展示時，應註明其為「人工智慧生成產出」等資訊，以彰顯資訊或可能偏離事實或應另行查找權威資訊以資確認。

臺灣主權AI訓練語料庫(Beta版)



三、標示義務

1. 除非依法免除或經授權人另行同意，於語料資料之應用型態為模型、權重等工具或輸出平臺之產出時，被授權人應標示語料平臺，就該語料資料提供之相關識別資訊，例如資料集名稱、版本號、資料集提供者、發布年份、資料集申請頁面或官方網站、或其他經授權人指定之格式化引用資訊，以及指出係依「臺灣主權AI訓練語料授權條款-第1版 (Taiwan Sovereign AI Training Data License-Version 1.0)」發布之狀態，此一授權資訊之呈現，得標示授權條款正式全稱，例如：「「臺灣主權AI訓練語料授權條款-1.0—有效期間至2030年」、「臺灣主權AI訓練語料授權條款-1.0—有效期間為永久」、「SAITD-Lic-Taiwan-1.0-Valid until 2030」、「SAITD-Lic-Taiwan-1.0-Valid in perpetuity」。
2. 鑒於人工智慧訓練涉及多元來源之語料資料混用，授權人同意就本授權條款發布之語料資料，進行識別資訊標示時，被授權人僅需就語料平臺提供之語料資料庫或資料集名稱，及其他相關識別資訊進行標示，毋須就本授權語料資料內含個別素材，如語文、音樂、美術、攝影、圖形、視聽、錄音等客體進行逐項標示。
3. 於語料資料之應用型態為程式碼、文件等型態之輸出時，相關標示義務得視媒介或載體之限制，採更為簡化之方式為之。例如採人工智慧軟體模型或服務平臺進行輸出執行，後續輸出成果於公開演播或展示時，應註明其為「人工智慧生成產出」等資訊，以彰顯資訊或可能偏離事實或應另行查找權威資訊以資確認。

謝謝！ Thank you.